
Swaffham Infants School, Audit Report**Audit Date: 11 February 2020****Report: Year 2 visit 2****DPE: Linda Mortimer****School member: Acting Headteacher – Emily McMillen**

1. Visit details

Details highlighted at the time of the last visit were discussed. GDPR documents and policies were also reviewed. This included DPE Best Practice areas, Compliance Checklists, SLA tool, Record of Processing and Compliance Manager being discussed and demonstrated to the school. The themed audit carried out by NCC in Summer Term 2019 was also talked through (refer to section 6 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 5.1 below).

Review actions recommended at time of previous visit – 14.2.19

All actions, including any required changes to working practices highlighted during the visit in February 2019, have been addressed at the time of the visit on the 11 February 2020, as confirmed by Emily McMillen, Acting Headteacher.

Audit walk and findings on 11.2.20

Safeguarding: The school is successfully using 'My Concern' to manage Safeguarding. There are robust procedures in place for uploading safeguarding documents and reports, followed by the secure destruction of these documents.

GDPR Policy: The school currently has a GDPR statement published on its website. This does not constitute a GDPR Policy.

Action: The DPE model GDPR Policy was downloaded at the time of the visit. This will be recommended to Governors for adoption at their next meeting. Once ratified, the school will upload to the website.

Privacy Notice: The school has adopted the DPE model Privacy Notice.

Action: Remove individuals named as the Data Protection Officer, and replace with Data Protection Education as the DPO.

Action: The Privacy Notice requires a more detailed list of third parties with whom the school shares personal information. This can be added to the Privacy Notice as an appendices.

Action: Add information at reception to inform visitors where they can access the school's privacy statement from i.e. school website.

Action: Other policies which DPE recommend the school has in place were downloaded at the time of the visit. These will be recommended to Governors for adoption. The Headteacher was shown how these can be shared with staff using Compliance Manager.

Publication Scheme: This was discussed and examples will be provided for the school to make reference to. More guidance can be found under the News tab on the Knowledge Bank.

Staff Training: Senior staff have completed GDPR 101. All staff should complete GDPR 101. Staff completion can be checked on Knowledge Bank. A GDPR 20-minute refresher course will be available shortly on Knowledge Bank. DPE recommend that staff should refresh their training every 2 years.

Consent Forms: The school will compare their current consent forms with the DPE model consent forms.

Action: The school will check that correct parental consent is in place for all students in Early Years, where student images are used in Learning Journeys.

Action: Student images used in EYFS Learning Journeys should be regularly uploaded to a secure area on the server and cleansed from the device on which they were taken – iPad or camera.

Naming convention: All exercise books, work trays, files, displays and coat pegs use first names only.

Laptops: Are encrypted, password protected and accounted for on a regular basis.

Action: School to share the Working Away from School Policy with all staff who work at home. This can be managed via Compliance Manager on Knowledge Bank.

iPads: Are password protected and accounted for on a regular basis.

Action: Check with IT Technician that iPads have 'Find my iPad' and 'Return to Factory Settings' installed.

School Kitchen: Operated by Edwards and Blake. All allergy information is kept securely.

Staffroom: Staff pigeonholes were checked and some reports were found containing confidential information relating to students.

Action: Remind staff not to retain any information relating to students in staff pigeonholes and that confidential reports should be kept securely at all times.

First Aid Records and Medical Student Care Plans: Are stored securely in the medical area.

School Server: DPE advise that the school needs to ensure a robust procedure for cleansing out of date information and student images from the school server is in place (not discussed a time of visit).

Reception Badger: Computer left unlocked, please remind member of staff to: Leave it, Lock it.

Year 1 Hedgehogs: Dinner register left out, detailing student's first name and surname and attendance information. These are normally shredded after lunch.

Printing: Password protection print retrieval system is in place.

Classrooms – General Observation: Each classroom has a locked first aid cabinet, containing inhalers and any other medical equipment such as epi pens.

Each classroom also has a locked cabinet for retention of confidential student information.

2. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent, guidelines and records

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

2.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

2.2. Staff training

GDPR training has been completed and documented for the majority of staff. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

2.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

2.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

3. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

4. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

5. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

5.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

6. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>